

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUBC068335: JANE DOE vs MARCUS MARTIN, et al.
09/28/2026 in Department 40
Demurrer**

Presiding Judge Matthew P. Guasco is covering Courtroom 40 on this date in light of Judge Mark Borell's absence.

The Following is the Court's tentative decision concerning the demurrer of Defendants Marcus Martin and Inside Car Guys, LLC ("Defendants") to the Complaint of Plaintiff Jane Doe ("Plaintiff"):

For the following reasons, the Court SUSTAINS the demurrer IN PART and OVERRULES the demurrer IN PART:

(1) The Court exercises its discretion under California Rules of Court, rule 3.1300, subdivision (d), to consider Plaintiff's opposition. The opposition was filed approximately one minute after the applicable filing deadline, but Defendants filed a timely substantive reply addressing the opposition on the merits and identify no resulting prejudice.

(2) The Court does not consider the memorandum's challenge to the Thirteenth Cause of Action for Intentional Infliction of Emotional Distress. The notice and demurrer identify only the Seventh, Tenth, Eleventh, Fourteenth, and Fifteenth Causes of Action, and the meet-and-confer declaration likewise identifies only those causes of action. (Nemeth Decl., ¶¶ 4-7) (Cal. Rules of Court, rule 3.1320(a).)

(3) The Court OVERRULES the demurrer to the Seventh Cause of Action for Conversion. Although the alleged unpaid distributions, minimum payments, and other contract-derived sums do not themselves state a conversion claim merely because they are identified by dollar amount, the Complaint also alleges that Martin wrongfully accessed and deleted Plaintiff's personal phone data and exercised dominion over that data without consent. (Compl., ¶¶ 61-63, 110-114, 116-120, 123-127) These allegations are sufficient to plead a present possessory interest, wrongful interference or disposition, and resulting damage. Because a general demurrer may not be asserted as to a portion of a cause of action, if any part of the cause of action is properly pleaded, the demurrer must be overruled. (*Fire Ins. Exchange v. Superior Court* (2004) 116 Cal.App.4th 446, 452; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047.) Here, even if Plaintiff's theories based on unpaid distributions, sale proceeds, or other contractual sums are insufficient under *Voris v. Lampert* (2019) 7 Cal.5th 1141, 1151-1152, the allegations concerning Plaintiff's personal phone data independently support the conversion cause of action.

(4) The Court OVERRULES the demurrer to the Tenth Cause of Action for Fraud/False Promise. The fraud allegations incorporate the prior allegations identifying Martin as the speaker, Plaintiff as the recipient, the written Revenue Sharing/Ownership Interest Agreement as the means by which the material promises were made, and the terms of those promises. (Compl.,

¶¶ 24-45, 128-135.) The Complaint further alleges that Martin did not intend to perform those promises when they were made. (Compl., ¶ 132.) This allegation of contemporaneous intent is sufficient at the pleading stage; evidentiary facts proving intent need not be pleaded. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638, 645; *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1059-1061.)

(5) The Court SUSTAINS the demurrer to the Eleventh Cause of Action for Negligent Misrepresentation WITH LEAVE TO AMEND. This cause of action generally alleges representations concerning ownership, distributions, future payments, access, indemnification, debt repayment, and buyout rights, but it does not identify a false representation of an existing or past material fact. (Compl., ¶¶ 137-143) Negligent misrepresentation ordinarily must concern a past or existing material fact and cannot be predicated on a promise of future performance. (*Tarmann v. State Farm Mutual Automobile Ins. Co.* (1991) 2 Cal.App.4th 153, 158-159.) The Agreement's acknowledgment of the existing \$300,000 third-party loan does not cure the defect because the Complaint does not allege that the existence or terms of that debt were falsely represented. Leave to amend is appropriate because this is the original complaint and Plaintiff may be able to identify a specific false statement of existing fact and corresponding reliance.

(6) The Court SUSTAINS the demurrer to the Fourteenth Cause of Action for Contractual Indemnity WITH LEAVE TO AMEND. The Agreement contains an express provision requiring Martin to indemnify, defend, and hold Plaintiff harmless from claims, liabilities, damages, costs, and expenses arising from either the companies' or Martin's activities. (Compl., ¶¶ 44, 157) But, the Complaint does not identify a third-party claim asserted against Plaintiff, a tender of defense, a judgment or settlement, or another presently-fixed indemnifiable liability. Instead, it alleges generally that Plaintiff has incurred or may incur debt, credit, and collateral exposure. (Compl., ¶¶ 158-160.) The \$300,000 loan and guaranteed credit obligations may support contract claims if the repayment provisions are breached, but the present allegations do not sufficiently identify a triggering indemnity or defense obligation. (*Zalkind v. Ceradyne, Inc.* (2011) 194 Cal.App.4th 1010, 1027; *Crawford v. Weather Shield Mfg., Inc.* (2008) 44 Cal.4th 541, 554-558; *Myers Building Industries, Ltd. v. Interface Technology, Inc.* (1993) 13 Cal.App.4th 949, 969-970.)

(7) The Court SUSTAINS the demurrer to the Fifteenth Cause of Action for Constructive Trust/Equitable Lien WITHOUT LEAVE TO AMEND these claims as a separate cause of action, but WITH LEAVE TO AMEND these claims as a remedy. Plaintiff agrees that claims for the imposition of a constructive trust and an equitable lien are remedies rather than independent causes of action. (Opp., p. 7) Plaintiff remains free to request these remedies in the prayer or in connection with any viable cause of action. (*Glue-Fold, Inc. v. Slautterback Corp.* (2000) 82 Cal.App.4th 1018, 1023, fn. 3.)

(8) The Court enters its Order directing Plaintiff to file and serve the First-Amended Complaint by no later than October 19, 2026.

Counsel for Defendants shall serve and file a Notice of Ruling and Proposed Order consistent with the above by no later than October 5, 2026. A copy of this Tentative Decision (if it is adopted by the Court without modification as the final ruling) or of the Clerk's Minute Order may be attached to and incorporated by reference in any Notice of Ruling.

